IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH
-.-

Reserved on :-19.09.2024
Date of Decision : 21.10.2024

1. CWP-4468-2018

Anil Kumar Jindal ....Petitioner

VERSUS

State of Punjab and Others ....Respondents

2. CWP-6499-2022

Rajinder Bansal ....Petitioner

VERSUS

State of Punjab and Others ....Respondents

CORAM : HON'BLE MR. JUSTICE SURESHWAR THAKUR
HON'BLE MRS. JUSTICE SUDEEPTI SHARMA

Present: **For the petitioner(s)**

Mr. Salil Sagar, Sr. Advocate assisted by
Mr. Sankal Sagar, Advocate and
Mr. Sunil Kumar, Advocate (in CWP-4468-2018)

Mr. Vikas Singh, Advocate and
Ms. Anamika Sheoran, Advocate (in CWP-6499-2022)

For the respondents

Mr. Maninder Singh, Sr. DAG, Punjab

Ms.Manisha Gandhi, Sr. Advocate assisted by
Ms. Manveen Narang, Advocate for respondent No.2.
(in CWP-4468-2018)

Mr. Vikas Chatrath, Advocate and
Mr. Sanchit Katoch, Advocate and

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Mr. Akshat Kalia, Advocate for respondent No.2
(in CWP-6499-2022)

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SUDEEPTI SHARMA, J.

Since the similar issue is involved in the above-numbered writ petitions, therefore, vide this common judgement, we shall decide both the writ petitions mentioned above.

2. The challenge in the present petitions is to the order dated 27.09.2002, whereby the petitioner(s) were removed from the Register of the High Court of Punjab and Haryana, Chandigarh, under Rule 4 of Part "D" of Punjab Civil Services (Judicial Branch) Rules, 1951.

3. The brief facts of the case are being taken up from CWP-4468-2018, titled as "Anil Kumar Jindal Vs. State of Punjab and Others":-

i) The Punjab and Haryana, High Court, advertised 21 posts of PCS (Judicial) in the year 2001. The written examination was conducted and the result was declared on 07.11.2001. 21 candidates were recommended for appointment to the Punjab Civil Services (Judicial Branch).

ii) On 30.11.2001 the result was published in the official Gazette.

iii) The petitioners were selected and appointment letters were issued to them on 18.03.2002.

iv) Before issuance of posting orders Sidhu scam came to light and the Chairman of Punjab Public Service Commission was arrested on corruption charges and FIR No.64, dated 05.09.2002 was also

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registered against the petitioners under Sections 8 and 12 of the Prevention of Corruption Act, 1988.

v) On 17.08.2002, the High Court of Punjab and Haryana took *suo moto* cognizance and constituted a committee to investigate the matter. Thereafter, the High Court made a recommendation to the State Government of Punjab for termination of service of four batches i.e. 1998, 1999, 2000 and 2001.

vi) On 27.09.2002, the termination orders were issued to the petitioners.

vii) Thereafter, the petitioners along with other candidates filed CWP-17347-2003, titled as Anil Kumar Jindal and Others Vs. State of Punjab and Others challenging their termination orders dated 27.09.2002. CWP-17347-2003 was tagged with a bunch of petitions with lead case as CWP-1626-2003.

viii) The Full Bench of this Court vide judgment dated 27.05.2008 dismissed the writ petition filed by the petitioners herein (CWP-17347-2003 titled as Anil Kumar Jindal and Others Vs. State of Punjab and Others). The petitioner filed review in the same which was also dismissed by the Full Bench of this Court.

ix) Now the challenge in the present writ petition is to the order of termination dated 27.09.2003 and to order dated 13.02.2017, whereby the revival of offer of appointment dated 18.03.2002 was declined.

<u>SUBMISSIONS OF LEARNED COUNSEL FOR THE PARTIES</u>

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4. Learned counsel for the petitioner contend that since the petitioners were honourably acquitted from all the charges levelled against them in FIR No.64, dated 05.09.2002 vide judgment dated 21.03.2016, therefore the tainted record of the petitioners is cleared and they are now out of shady zone and deserve to be re-instated. They further contend that vide order dated 27.05.2008, passed by this Court in CWP-17347 of 2003 alongwith other writ petitions, the writ petitions were dismissed, only on the ground of registration of FIR No.64 dated 05.09.2002 against them and because the investigation was still pending. Since the petitioners are now honourably acquitted in the said FIR, therefore, they deserve to be re-instated.

5. *Per contra,* learned counsel for the respondents contend that the impugned order has rightly been passed and names of the petitioners have rightly been removed from the Register of the High Court of Punjab and Haryana (Judicial Branch), under Rule 4 of Part "D" of Punjab Civil Services (Judicial Branch) Rules, 1951.

6. We have heard learned counsel for the parties and perused the whole record of the cases in hand.

7. The relevant portion of the judgment dated 27.05.2003 passed by the Full Bench of this Court, whereby the earlier writ petition filed by the petitioners herein i.e. CWP-17347-2003 was decided along with bunch of petitions with the main petition i.e. CWP-1626-2003 :-

> " *In the Full Court meeting held on 23.05.2002, a resolution was passed, whereby a Committee consisting of four Hon'ble Judges of this Court was formed in the light of the disturbing reports appearing*

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in the press and the electronic media containing allegations against certain Hon'ble Judges of this Court and their wards. The Committee perused the answer scripts of only nine candidates (01 from 1999 batch, 01 from 2000 batch and 07 from 2001 batch who were named by the approvers) and made the following observations:

> *"(1) The performance of most of the candidates is below average.*
>
> *(2) The marks awarded to the candidates for the PCS (Judicial) are apparently disproportionate to the answers given by them. Even by the most liberal standards, the awards cannot be justified.*
>
> *(3) The marks of many candidates have been substantially increased from those originally awarded to them. This appears to have been done to ensure their selection."*

On 12.8.2002 the Full Court accepted the report dated 30.5.2002 of the First Committee and recommended the termination of officers belonging to all the four batches. On 27.9. 2002 the State Government dispensed with the services of officers belonging to 1999, 2000 batches and also of the candidates of 2001 batch, which was a pipeline batch as posting orders were yet to be issued to that batch. On the same day, the State Government referred back the case of 1998 batch to this Court for re-consideration. For examining the case of 1998 batch, second Committee of Five Hon'ble Judges of this Court was constituted by the then Hon'ble Acting Chief Justice on

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10.10.2002. The Second Committee again considered the statements of the approvers and other witnesses recorded under Section 164 of the Code of Criminal Procedure as also other documents placed before it and came to the following conclusions:

> *"(1) performance of most of the selected candidate was below average and the marks awarded to them were disproportionate to the answers given by them.*
>
> *(2) The marks originally given to the candidates were scored off and unjustifiably increased obviously with a view to ensure their selection and*
>
> *(3) Another feature which was noticed that the answer sheets of some of the non-selected candidates were qualitatively better than some of those who had been selected but they had been awarded lesser marks, presumably with a view to push them down."*

It is worth mentioning that the Second Committee again recommended the termination of all the officers of 1998 batch. The State Government on the recommendations made by this Court dispensed with the services of the officers belonging to 1998 batch on November 6, 2002.

The petitioners belonging to 1998-2001 batches. challenged their orders of termination by filing several writ petitions. The matter came up before the Full Bench of this Court, which heard the writ petitions of the Judicial Officers as also the writ petitions filed by the

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Executive officers collectively and through a common judgment dated 7.7.2003, those writ petitions were dismissed.

Feeling dissatisfied with the judgment delivered by the Full Bench of this Court, the aggrieved officers filed SLPs before the Hon'ble Supreme Court in August 2003. These appeals were decided by the Apex Court on 3.5.2006. The Hon'ble Supreme Court set aside the impugned judgment dated 7.7.2003 of the Full Bench of this Court and the matter was consideration with the committees remitted back to this Court for fresh direction that "two independent scrutiny one relating to the Executive Officers and the other relating to the Judicial Officers be constituted with a view to segregate between the tainted with non-tainted candidates."

In view of the aforesaid directions of the Hon'ble Supreme Court, this Court constituted a committee on 25.5.2006 under the chairmanship of Hon'ble Mr. Justice K.S.Garewal and the other two members of the committee, namely, Hon'ble Mr. Justice Ashutosh Mohunta and Hon'ble Mr. Justice Jasbir Singh. To the majority report, Hon'ble Mr. Justice K.S.Garewal added a post script recording his reasons of dissent, which reads as under:-

> *"Post Script*
>
> *I had completed a draft of this report and placed it before the Committee in early December, 2006 and the proceedings were concluded. However, the joint report of my learned brothers Hon'ble Mr. Justice Ashutosh Mohunta and Hon'ble Mr. Justice*

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Jasbir Singh refers to certain, earlier judicial proceedings between the Chairman and the members of the PPSC (pages 15 to 20). This record was summoned by my learned brothers after proceedings were concluded but was never discussed before the Committee. I do not think it is at all relevant to the terms of reference of the Committee. I also feel that my learned brothers have placed far too much emphasis on the wealth of Ravi Sidhu (pages 21 to 28). I fail to see how this helps to identify the tainted candidates."

In the written statement filed on behalf of the High Court- respondent No.3, It has been specifically pleaded that Article 311 of the Constitution is not attracted since the impugned order does not impose any penalty, much less the penalty of dismissal. It is a case of simple dispensing with the services of the petitioners during the period of their probation; that when the entire selection is vitiated on account of fraud and manipulation of results, principles of natural justice are not attracted and therefore, no opportunity was to be given to the affected candidates before declaring the selection void; that all the affected candidates are being granted a fresh opportunity to compete for the posts in a fresh selection, which clearly shows that the impugned order is not punitive and no prejudice is intended to be caused to any of the candidates who deserved to be selected on merit; and that the services of the

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petitioners have been dispensed with in accordance with terms and conditions of their appointments. On merit, it has been specifically pleaded that the process of selection suffered from substantial irregularities. It has further been averred in the written statement that this Court had come across various allegations made in the press and the electronic media regarding gross irregularities in the process of selection as also examination conducted for the selection of PCS Judicial Officers. A sub committee was formed to look into the matter, which found that the examination process/result/selection suffered from such substantial irregularities as to render the entire process of selection tainted. Keeping in view the report of the committee, the Full Court recommended the termination of the services of the petitioners. It has been further averred in the written statement that the State of Punjab referred back the recommendations made by this Court with respect to the 1998 batch. However, a sub-committee was again constituted after taking a decision in the Full Court meeting, which re-examined the matter with respect to 1998 batch officers. On the basis of the report submitted by the Committee, the Full Court again recommended the termination of the 1998 batch candidates. It is only after the recommendations of this Court, the State Government dispensed with the services of the 1998 batch officers. Since the entire process of selection was found to be

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tainted, it was not necessary to issue a notice to each candidate before declaring the selection void. In the end, it was prayed that the writ petitions filed by the petitioners are liable to be dismissed.

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The moot question that emerges for consideration before this Court is, as to whether the action of the respondent-State in dispensing with the services of the petitioners belonging to 1998-2000 batches and in cancelling the appointment letters issued to the candidates of 2001 batch by the State of Government and in whose favour posting orders were yet to be issued by this Court on the basis of recommendations made by the Hon'ble members of the two committees constituted by this Court on administrative side and approved by the Full Court, especially when no material was available with them, is illegal, arbitrary and against the principles of natural justice? If so, its effect? If this Court, after appreciation of material available on the record, arrives at a conclusion that no illegalities or irregularities had been committed during the selection process/appointments of the candidates relating to 1998-2001 batches by indulging in corrupt practices or by unfair means or by using extraneous considerations, then the answer of this question would certainly be in the affirmative and as a consequence thereof, the decision taken in the Full Court meeting on the basis of the recommendations made by the committees of this Court, whereby the

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whole selection process and the appointments made thereunder of all the Judicial Officers pertaining to 1998-2001 batches were declared to be the result of extraneous considerations/corrupt practices and unfair means are liable to be quashed and in that eventuality, writ petitions filed by the petitioners have to be accepted. In this backdrop, the cases of the petitioners, as projected in the writ petitions, have to be examined minutely relating to all the four batches (1998-2001) on the basis of the material available on the record.

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We have considered the submissions, as noted here-in-above. Before we deal with the contentions raised by the learned counsel for the petitioners, we would, at this stage, like to discuss the cases of the petitioners of 1998-2000 batches and also of the petitioners of 2001 batch against whom no case has been registered nor any of the approvers has named them, inasmuch as the cases of those petitioners, namely, Gurkirpal Singh, Taran Taran S. Bindra, Ms. Parveen Bali, Ms. Manisha Jain, Avtar Singh Barda, Mahesh Kumar, Balwidner Kumar, Harprit Singh and Rajwinder Kaur Bhatti (since deceased) are on the same footing along with the candidates of other batches and therefore, a common discussion is being made with regard to all the petitioners. It is further made clear that the cases of the petitioners, namely, S/Shri Ram Saran, Rajinder Bansal, Preetwinder Singh and Anil Kumar against whom a criminal case

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under FIR No.64, dated 03.09.2002 has been registered, would be taken up by us in the later part of the judgment.

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Keeping in view the facts and circumstances of this case as discussed above, it is ipso facto clear that even after boarding a sinking ship, the petitioners have been able to sall through the stormy winds raised by the Committees of the Hon'ble Judges of this Court on administrative side on the platform of suspicion and as such, the bread of the petitioners is required to be revived on judicial side.

So far as the cases of the petitioners, namely, S/Shri Ram Saran, Preetwinder Singh, ***Rajinder Bansal and Anil Kumar Jindal*** *of 2001 batch against whom FIR No.64 dated 03.09.2002 has been registered are concerned, we are of the view that the investigation is yet to be completed, meaning thereby that, till they are given a clean chit, they are in shedy zone at this stage and they are surrounded by tainted clouds, which are yet to be cleared. Without commeting further lest it might prejudice the present petitioners and the investigating Agency, to our mind, these petitioners are not entitled to any relief at this stage on account of the pendency of investigation. There are serious allegations in the FIR and the Investigating Agency may collect necessary evidence at a later stage and it would not be in the interest of the purity of administration of justice to grant any relief to these petitioners at this stage. In case the contention of the petitioners against whom the case has been registered is accepted,*

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then it would hamper the investigation. ***It is further relevant to mention here that none of these four candidates, namely, S/Shri Ram Saran, Preetwinder Singh, Rajinder Bansal, Anil Kumar Jindal (writ petitioners in CWP-17347 of 2003) has qualified the competitive exams conducted by this Court during the year 2003.*** *Accordingly, the Civil Writ petition No.17347 of 2003 being without any merit, is liable to be dismissed.*

x x x x

So far as Civil Writ Petition No.17347 of 2003 filed by petitioners, S/Shri Anil Kumar Jindal, Ram Saran, Preetwinder Singh and Rajinder Bansal is concerned, the same has got no merit and it is hereby dismissed."

8. The High Court of Punjab and Haryana challenged the judgment dated 27.05.2008 passed by the Full Bench of this Court before the Hon'ble Supreme Court in Civil Appeal Nos.2504-2530 of 2010. The Hon'ble Supreme Court disposed of the same vide its judgment dated 18.03.2010. Relevant portion of the same is reproduced as under:-

"4. These appeals have been preferred by the High Court of Punjab and Haryana against common Full Bench judgment and order dated 27.5.2008 passed by Punjab and Haryana High Court at Chandigarh in several Civil Writ Petitions preferred by respondents herein.

5. Whole controversy had arisen on account of certain alleged irregularities having been committed by the then

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Chairman of the Punjab Public Service Commission (for short the Commission) Shri Ravinder Pal Singh Sidhu, who had allegedly shown favours to many candidates who had appeared for Punjab Civil Services Judicial Branch, by awarding more marks and then recommending for their appointments on extraneous considerations.

6. Full Bench of the High Court passed the following directions :-

> *" The petitioners in respect of 1998, 1999 and 2000 batches are ordered to be reinstated and the appointment letters earlier issued by the State Government to the petitioners, namely, Ms. Parveen Bali, Ms. Manisha Jain, S/Shri Avtar Singh Barda, Mahesh Kumar, Balwinder Kumar, Harprit Singh, Gurkirpal Singh Sekhon and Tarantaran Singh Bindra, except for Rajwinder Kaur Bhatti (since deceased), relating to 2001 batch are ordered to be restored and thereafter, respondent – High court is directed to issue posting orders to all the petitioners pertaining to 1998-2000 batches and also of the eight petitioners aforementioned in respect of 2001 batch, within a period of three months from today. However, it is directed that the petitioners relating to 1998-2000 batches shall not be entitled to salaries for the period they remained out of job until the date of their*

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reinstatement, but the said period shall be counted as the period spent on duties for the purpose of determining qualifying service for pension and other purposes, including grant of increments etc. Non-performance of duties for the said period shall not be treated as a break in service."

7. However, certain other directions were also issued by the Full Bench but we are not concerned with that part of the direction as the same is not the subject-matter of challenge in these appeals before us.

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29. However, it should not be construed that our judgment is giving seal of approval of the judgment of Full Bench of Punjab and Haryana High Court but with an intention to work out the equities and to do complete justice between the parties and in view of the earlier judgment of this Court reported in (2006) 11 SCC 356 that tainted candidates be separated from untainted, meaning thereby this Court did not accept the submission that it was not practically possible to do so, and further this court had taken note of re-selection held in 2004 in paragraph 92 of the judgment, but held that the effect thereof would be subject to this case, this is the only via-media, through which the respondents could also be granted relief as it could not be established that even otherwise, they would have been declared

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as unsuccessful candidates. Precisely, that is the reason we have moulded the reliefs granted to the respondents by the High Court as our order is not likely to affect seniority of any of the judicial officers, who had already been working prior to the respondents. We are conscious of the fact that by this procedure, there is no likelihood of any off shoots of the said order and hopefully the whole controversy triggered in the year 1998, would stand settled for all times to come.

30. Out of the candidates who were selected in the batch of 1998, 6 officers/candidates had already put in more than three years of service. We have been given to understand that in the year 2007, there was selection to the post of Civil Judge (Judicial Division) and 45 candidates were appointed on 14.3.2008. This clearly shows that the said 6 officers of the batch of 1998 have already put in more than three years of service. Thus, these 6 candidates/officers would be placed above the batch of 45 candidates who were selected on 14.3.2008 and were issued posting orders subsequent thereto. The rest of the candidates that is to say, remaining 11 candidates will take place in the seniority list immediately after last appointment made in the service of Civil Judge (Judicial Division).

31. Out of the candidates who had been selected for the year 2001 batch, 5 candidates göt selected in the test conducted by

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the High Court in the year 2004. Thus, for them no further directions are required to be given. Out of the remaining batch of 2001, 8 candidates have been named in the FIR and only 3 candidates i.e. Shri Gurkirpal Singh Sakhon, Mahesh Kumar and Harprit Singh even though selected but remained to be appointed. These candidates shall also be issued appointment orders as last candidates in the seniority list.

32. The candidates who are to be given re-appointment are entitled to the period of service which was rendered by them would be reckoned for the purpose of pension. They would not be entitled to get any arrears of salary or any financial benefits consequent upon the reappointment. The period of service rendered by these candidates would also be reckoned for the purpose of A.C.P./promotion. Actual service be counted for the purpose of pension and fixation of notional increments without any financial benefit or arrears."

9. Vide judgment dated 21.03.2016 passed by the learned Special Judge, Patiala, the petitioners were acquitted in FIR No.64, dated 05.09.2002, registered against them under Sections 8 and 12 of the Prevention of Corruption Act, 1985.

10. Thereafter, the petitioners filed representation before the Department of Home Affairs & Justice, Government of Punjab on 09.08.2016 stating therein that since they have been acquitted by the learned Trial Court in FIR No. 64, dated 05.09.2002 and they are now out of the shady zone, therefore, they be re-instated

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and appointed and appointment order dated 18.03.2002 be restored. This Court declined the representation on 13.02.2017.

11. The petitioners filed the review application before this Court by placing on record the judgment of acquittal, which was dismissed vide order dated 14.07.2017 by the Full Bench of this Court. The said order is reproduced as under:-

> *" The writ petition filed by the applicant-petitioners was dismissed at that stage on account of pendency of criminal proceedings against the applicants.*
>
> *In our opinion, review of the judgment cannot be sought at this stage relying upon subsequent acquittal of the applicants in the criminal proceedings and rejection of their representation by the High Court.*
>
> *Accordingly, the review application is dismissed."*

12. The relevant portion of the reply dated 02.04.2018 filed by respondent No.2 (Punjab and Haryana High Court) in the present writ petition is reproduced as under:-

> *"1. That the petitioner herein had appeared in the PCS (JB) Examination held in the year 2001. The result notification dated 21.11.2001 showing the result of the Petitioner at Serial No.7 is annexed herewith as Annexure R-1.*
>
> *2. That on the basis of the said notification the Punjab Government forwarded the names of 19 candidates including the Petitioner for the* ***year 2001 batch*** *for entering their names in the High court register in*

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order to issue appointment orders vide letter dated 17.1.2002. A copy of letter dated 17.1.2002 is annexed herewith as ***Annexure R-2****. The names of the petitioner was entered in the High Court Register.*

3. That the Government of Punjab issued the appointment letter to the selected candidates including Sh. Anil Kumar Jindal vide letter dated 18.3.2002. A copy of appointment letter so issued is annexed herewith as Annexure R-3.

4. That before issuance of the posting orders to the 18 candidates of the year 2001 batch including the Petitioner, Sidhu scam took place. Therefore, the High Court made recommendation to the State government for termination of his services including the Officers of the batches of 1998, 1999 and 2000 vide order dated 17.8.2002. A copy of recommendation dated 17.8.2002 is annexed herewith as Annexure R-4. The Punjab Government issued the order of termination to all the concerned officers including the Petitioner on 27.9.2002. The order of termination qua the present Petitioner are annexed herewith as Annexure R-5.

5. That some of the aggrieved candidates of the year 1998, 1999, 2000 and 2001 who's services were terminated filed a writ petition in this court and the same were dismissed by common judgment dated 7.7.2003 rendered in CWP No.8421 of 2002 titled as Amarbir Singh Versus State of Punjab and others by the Full Bench of this Hon'ble Court comprising Hon'ble Mr. Justice B.K. Roy, (the then Hon'ble the Chief Justice), the Hon'ble Mr. G.S.Singhvi and Hon'ble Mr. Justice

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Justice N.K. Sodhi. The Petitioner in the said writ petition had basically challenged their termination order on the grounds of violation of provisions of Article 14, 21 and 311 of the Constitution of India and the rule of natural justice. Some of the Petitioner therein had prayed that after the completion of 3 years probations they were deemed to have been confirmed in their service in-terms of Punjab Civil Services Rules 1970. A copy of judgment dated 7.7.2003 is annexed herewith as Annexure R- 6.

6. That the aforesaid writ petition was dismissed by the Hon'ble Full Bench with an observation "the State Government was, therefore, justified in cancelling the selection in entirety and no fault can be found with its decision in this regard because in these circumstances grain could not separated from the Chaff and the meritorious candidates had also to suffer". ***However, a fresh chance was given to all the candidates who participated in the earlier selection process and the candidates who get selected will be given their seniority with retrospective effect as if they had joined the service on their earlier appointment/ selection.***

7. That in pursuance of the aforesaid judgment dated 7.7.2003 (R-6) this Court had started. the process of filling up 60 posts. The examination for filling up the said post was conducted by this Hon'ble Court in the month of September 2003. The Petitioner had not appeared in the said examination.

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8. That feeling aggrieved against the order dated 7.7.2003 some of the Petitioner challenged the said order in the Hon'ble Supreme Court vide SLP No.3411-21 of 2005 titled as Inder Preet Singh Kalon and others Versus State of Punjab and others (besides other connected appeal). The said appeal was decided by the Hon'ble Apex Court 3.5.2006. It is pertinent to mention that the Hon'ble Apex court had observed that "the candidates who were selected in 2001 have not been appointed at all. We have not, thus, taken into consideration their cases." Further the Hon'ble Apex Court also observed that "we must, however, express are satisfaction that no candidates for the year 2001 has been appointed". A copy of judgment dated 3.5.2006. is annexed herewith as Annexure R-7. The Hon'ble Apex Court while parting with the case in hand observed that "it is expected that the State having regard to the magnitude of the matter shall leave no stone unturned to bring the guilty to book. It is the duty of the State to unearth the scam and spare no officer however high he may be we expect the State to make a throw investigation into the matter." The Hon'ble Apex Court remanded the matter back to the Hon'ble High Court to decide the matter afresh.

9. That some of the aggrieved candidates who were named in the FIR had filed CWP no.17347 of 2003 including the present Petitioner for quashing the termination order dated 27.9.2002 ***(the same impugned herein before this Hon'ble Court)****. The said CWP no.1626 of 2003 was decided by the Full Bench on 27.5.2008. In pursuance of*

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the decision dated 3.5.2006 (R-8) of the Hon'ble Apex Court, Hon'ble the then Acting Chief Justice vide order dated 22.5.2006 was pleased to order that the matter be placed before the Hon'ble Full Court. In the Full Court meeting held on 25.5.2006 it was decided that the matter be referred to the Hon'ble Acting Chief Justice for setting up two independent subcommittee one with regard to judicial officer and another with regard to Executive Officer. Hon'ble the Acting Chief Justice vide order dated 31.5.2006 and 7.6.2006 constituted two sub-committees. The report dated 22.2.2007 was given by Hon'ble Mr. Justice K.S. Grewal (since retired). The concluding portion of the report is as under:

*"**CONCLUSION**:*

1. No individual candidate can be considered to be tainted on the basis of the scrutiny of the answer scripts done by the Committee's examiners.

2. No candidate can be considered to be tainted on the basis of the police investigation as no candidate has been prosecuted by the Vigilance Department in respect of the case registered against them (FIR 64).

3. Candidates who can be termed tainted, on the basis of the statements of the approvers, are the sight candidates whose names appeared in the statements of Prem Sagar (PW-1) and Randhir Singh Gill @ Dhira (PW-2). These candidates are as under:

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(1) Maninder Singh (1999 batch)

(ii) Ram Saran (2001 batch)

(iii) Preetwinder Singh (2001 batch)

(iv) Mandeep Kaur (2001 batch)

(v) Monika Sethi (2001 batch)

(vi) Navdeep Singh (2001 batch)

(vii) Rajinder Bansal (2001 batch)

(viii) Anil Jindal (2001 batch)"

A copy of report dated 22.2.2007 is annexed herewith as Annexure R-8. The report dated 23.2.2007 was given by the Hon'ble Mr. Justice Ashutosh Mohunta and Hon'ble Mr. Justice Jasbir Singh as per the direction issued by the Hon'ble Supreme Court vide judgment dated 3.5.2006. A copy of report dated 23.2.2007 is annexed herewith as ***Annexure R-9.***

After considering the report of the subcommittee the Hon'ble Full Bench of this Court decided the said writ petitions vide judgment dated 27.5.2008. The portion relevant of the judgment is as under:

"x x x x x x x x x

So far as the cases of the petitioners, namely, S/Shri Ram Saran, Preetwinder Singh, Rajinder Ransal and Anil Kumar Jindal of 2001 batch against whom FIR No.64 of 3.9.2002 has been registered are concerned, we are of the view that the investigation is yet to be completed, meaning thereby that, till they are given a clean chit, they are in shady zone at this stage

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and that they are surrounded by tainted clouds, which are yet to be cleared. Without commenting further lest it might prejudice the present petitioners and the Investigating Agency, to our mind, these petitioners are not entitled to any relief at this stage on account of the pendency of investigation. There are serious allegations in the FIR and the Investigating Agency may collect necessary evidence at a later stage and it would not be in the interest of the purity of administration of justice to grant any relief to these petitioners at this stage. In case the contention of the petitioners against whom the case has been registered is accepted, then it would hamper the investigation. It is further relevant to mention here that none of these four candidates, namely, S/Shri Ram Saran, Preetwinder Singh, Rajinder Bansal, Anil Kumar Jindal (writ petitioners in CWP No.17347 of 2003) has qualified the competitive exams conducted by this Court during the year 2003. Accordingly, Civil Writ Petition No.17347 of 2003, being without any merit, is liable to be dismissed.

x x x x x x x x x x

So far as the civil writ petition 17347 of 2003 filed by the Petitioners namely Sh. Anil Kumar Jindal, Ram Saran, Preetwinder Singh and Rajinder Bansal is concerned the same has got no merit and is hereby dismissed."

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A copy of order dated 27.5.2008 is annexed herewith as ***Annexure R-10.***

10. That the Petitioner before this Hon'ble Court, also the Petitioner in CWP No.17347 of 2003 (named in the FIR) had filed C.M. No.12158 -12159 of 2008 in CWP No.17347 of 2003 with the prayer to modify the judgment dated 27.5.2008 to the extent that the writ petition filed by the Petitioner be declared to be dismissed at this stage and also seek the revival of the liberty to be given to the Petitioner to review the above mentioned writ petition. The said CM was dismissed vide order dated 14.7.2008 the same is annexed herewith as Annexure R-11. It is pertinent to mention here that the Petitioner in the above said writ petitions did not challenge the dismissal order in the Hon'ble Apex Court and therefore, the said order Annexure R-12 has attained finality.

11. That this Hon'ble Court had filed SLP (c) 2504-2530 of 2010 arising out of SLP (c) 22808 to 22834 of 2008 titled as High Court of Punjab and Haryana Versus State of Punjab and others against judgment dated 27.5.2008. The said SLP came up for final hearing before the Hon'ble Supreme Court of India on 18.3.2010. While disposing of the said SLP the Hon'ble Apex Court in para no.28 observed:

> *"28. It is not in dispute any more that the candidates were given fresh opportunity to appear for selection for the aforesaid post in the exam exclusively held for them in the year 2004."*

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The concluding portion of the judgment runs as under:

x x x x x

"31. Out of the candidates who had been selected for the year 2001 batch, 5 candidates got selected in the test conducted by the High Court in the year 2004. Thus, for them no further directions are required to be given. Out of the remaining batch of 2001, 8 candidates have been named in the FIR and only 3 candidates i.e. Shri Gurkirpal Singh Sekhon, Mahesh Kumar and Harprit Singh even though selected but remained to be appointed. These candidates shall be issued appointment orders as last candidates in the seniority list.

32. The candidates who are to be given re-appointments are entitled to the period of service which was rendered by them would be reckoned for the purpose of pension. They would not be entitled to get any arrears of salary or any financial benefits consequent upon the reappointment. The period of service rendered by these candidates would also be reckoned for the purpose of A.C.P./ promotion. Actual service be counted for the purpose of pension and fixation of notional increments without any financial benefit of arrears.

33. The appeals are disposed accordingly of.

34. SLP(c) Nos. 30882-30884/2008

Heard.

The Special Leave Petitions are dismissed.

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35. SLP (c) Nos.8824-8851/2009. The Special Leave Petitions are dismissed as not pressed."

A copy of order dated 18.3.2010 is annexed herewith as ***Annexure R-12****.*

12. That the Petitioner and the other candidates were facing trial in FIR No.64 dated 5.9.2002. They were acquitted of the FIR as per the judgment dated 21.3.2016. The operative part of judgment of the Additional District & Sessions Judge Patiala,, titled as State Versus Mandeep Kaur and others is as under: "having regard to the above discussion, all the accused namely ***Mandeep Kaur, Navdeep Singh****, Ram Saran, Anil Kumar Jindal, Rajinder Kumar Bansal, Preetwinder Singh, Monica Sethi, Manninder Singh, Manoj Kumar, H.L.Bansal and Keshav Lal Sethi are acquitted for the offence under Section 12 of the Prevention of Corruption Act."*

A copy of the judgment dated 21.3.2016 is annexed herewith as ***Annexure R-13****.*

13. That it is pertinent to mention that CWP No.17347 of 2003 was filed by the present Petitioner Anil Kumar Jindal, and others including Ram Saran, Preetwinder Singh and Rajinder Bansal. However review application was filed by one Ram Saran and Preetwinder (though in the knowledge of present Petitioner) in the above said writ and their review application as well as the representation filed by them which was declined was dismissed by the

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Hon'ble High Court vide order dated 14.7.2017. The said order is annexed herewith as Annexure R-14.

14. That the said Ram Saran and Preetwinder Singh whose review application were dismissed very conveniently filed an SLP (Civil) Diary no.(s): 27502/2017 including and IA 92809/2017 and I.A. No.92812/2017 challenging the order dated 14.7.2017 and also the order passed by the Hon'ble Court on 27.5.2008. It is pertinent to mention that said Ram Saran and Preetwinder gave a statement before the Hon'ble Apex Court that they are not interested in reinstatement as judicial officer of even applying a fresh for such appointment. It is only on such statement given by them that the Hon'ble Apex Court issued notice to the present Respondent and others. The order dated 27.10.2017 is annexed herewith as Annexure R-15. The Petitioner filed the present writ petition before this Hon'ble Court and thus the connivance of all these persons is out in the open and it can be seen that they are trying to play with the judicial system in one way or the other.

15. That the Petitioner alongwith others made representation for withdrawal of the order dated 27.9.2002 whereby their services were terminated by the Punjab Government and further prayed for revival of their names in the register of the High Court maintained under Rule 4 of Part B of the PCS (JB) Rules, 1951 as well as the revival of appointment dated 18.3.2002 with all the consequential benefits including seniority and arrears of pay alongwith interest @12% per

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annum on the basis of judgment delivered by the court of ASJ, Patiala on 21.3.2016 as quoted above. Copy of the representations dated 17.8.2016 addressed to the Hon'ble Chief Justice of Punjab and Haryana High Court are annexed herewith as Annexure R-16.

16. That in view of the representation (Annexure R-16) moved by the Petitioner, the same were considered by the Hon'ble Recruitment/ Promotion Committee for subordinate judicial service on 24.1.2017 and the said representation was declined. The order dated 24.1.2017 is annexed herewith as Annexure R- 17. The said report of the Hon'ble committee was accepted in the Full Court Meeting held on 8.2.2017 which is annexed herewith as Annexure R-18. The intimation was given to the Petitioner vide letter dated 13.2.2017.

17. That the Petitioner herein has no cause of action whatsoever to file the present writ petition as their earlier writ petition CWP no.17347 of 2003 was dismissed by the Hon'ble High Court. Furthermore their C.M. for modification of the said dismissal order seeking liberty to review the said order was also dismissed. Thus the present Petitioner has no cause of action to approach this Hon'ble Court as the said order were never challenged by the Petitioner before the Hon'ble Apex Court and thus the present petition deserves to be dismissed with heavy cost.

18. That it is pertinent to mention that the Hon'ble Court on its administrative side conducted a thorough inquiry by independently examining witnesses and came to the conclusion that some persons

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named of 2001 batch can be said to be tainted were not entitled to reappointment whatsoever. The Petitioner now on the basis of acquittal cannot claim reappointment more so when their claim has once and finally been decided by the Hon'ble High Court. Moreover, the petitioner has not challenged the finding given against him in the inquiry proceeding conducted by the Hon'ble Committee formed on the basis of Inder Preet Kahlon case.

19. That the Hon'ble High Court had conducted re-examination of all the candidates whose services were terminated as well as invited fresh application. However, the present Petitioner chose not to appear in the said examination and therefore, all decision were taken by the Hon'ble High Court on the administrative and judicial side and the decision taken by the Hon'ble Supreme Court were accepted in its totality by the Petitioner. Therefore, the Petitioner has no cause of action to challenge their termination order."

FINDINGS

13. A perusal of the record shows that admittedly, the writ petition filed by the petitioners was dismissed by the Full Bench of this Court vide judgment dated 27.05.2008, which was never challenged before the Hon'ble Supreme Court by the petitioners and therefore, the same attained finality.

14. Further the challenge to the judgment of Full Bench of this Court dated 27.05.2008 was made by the High Court of Punjab and Haryana before the Hon'ble Supreme Court and the Hon'ble Supreme Court vide its judgment dated 18.03.2010 dismissed the same.

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15. Thereafter, the review application filed by the petitioners in CWP-17347-2003 on the ground of their acquittal in FIR No.64, dated 05.09.2002, was again dismissed by the Full Bench of this Court vide its order dated 14.07.2017.

16. After perusing the whole record of the cases and sequence of events and the detailed judgment passed by the Full Bench of this Court dated 27.05.2008 dismissing CWP-17347-2003 filed by the petitioners herein challenging order dated 27.09.2002, whereby their names were removed from the Register of Punjab and Haryana High Court at Chandigarh, under Rule 4 of Part 'D' of the Punjab Civil Service (Judicial Branch), Rule 51. Further when the petitioners never challenged the judgment dated 27.05.2008 of the Full Bench of this Court in CWP before the Hon'ble Supreme Court and even the challenge to the same (27.05.2008) by the High Court of Punjab and Haryana before the Hon'ble Supreme Court whereby the Hon'ble Supreme Court dismissed the same vide judgment dated 18.03.2010 shows that the decision dated 27.05.2008 of the Full Bench of this Court in CWP attained finality. Thereafter on the ground of their acquittal in FIR No.64, dated 05.09.2002 even the review filed by the petitioners herein was dismissed by the Full Bench of this Court vide its order dated 14.07.2017.

17. Therefore, once the challenge to the impugned order dated 27.09.2002 in the present writ petitions attained finality till the Hon'ble Supreme Court and the challenge to the same order dated 27.09.2002 on the ground of acquittal in FIR No.64, dated 05.09.2002 against in the present writ petitions would not be maintainable.

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CONCLUSION

18. Therefore, we do not find any merit in the present petitions and the same are **dismissed**, accordingly.

19. Pending applications, if any, also stand disposed of.

20. A photocopy of this judgment be placed on the file of another connected case.

(SURESHWAR THAKUR)
JUDGE

(SUDEEPTI SHARMA)
JUDGE

October 21, 2024
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Whether speaking/non-speaking : Speaking
Whether reportable : Yes

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